

SECOND SCHEDULE.

- (1) DRAWBACKS TO BE ALLOWED ON ARTICLES REMOVED OR EXPORTED FROM THE ISLE OF MAN OR DEPOSITED IN ANY BONDED WAREHOUSE IN THE ISLE OF MAN FOR USE AS SHIPS' STORES, IF IT IS SHOWN TO THE SATISFACTION OF THE COMMISSIONERS OF CUSTOMS THAT THE DUTIES ON IMPORTATION HAVE BEEN DULY PAID. Section 1.

On sugar which has passed a refinery in the Isle of Man a drawback equal to the duty on sugar of the like polarisation.

On goods (other than beer), in the manufacture or preparation of which in the Isle of Man, any of the articles liable to duty has been used, a drawback equal to the duty in respect of the quantity of that article which appears to the satisfaction of the Treasury to have been used in the manufacture or preparation of the goods or, in the case of residual products, to be contained therein; and, in allowing that drawback, the Commissioners of Customs may, with the assent of the Treasury, in order to facilitate trade, relax in the case of any goods any requirements of sections one hundred and four and one hundred and six of the Customs Consolidation Act, 1876, as to the giving of security and the examination of goods.

- (2) DRAWBACK TO BE ALLOWED TO A REFINER ON MOLASSES PRODUCED IN THE ISLE OF MAN AND DELIVERED BY HIM TO A LICENSED DISTILLER FOR USE IN THE MANUFACTURE OF SPIRITS.

A drawback at the rate of one shilling the hundredweight.

CHAPTER 36.

An Act to amend the Locomotives on Highways Act, 1896.
[14th August 1903.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:

1.—(1) If any person drives a motor car on a public highway recklessly or negligently, or at a speed or in a manner which is dangerous to the public, having regard to all the circumstances of the case, including the nature, condition and use of the highway, and to the amount of traffic which actually is at the time, or which might reasonably be expected to be, on the highway, that person shall be guilty of an offence under this Act. Reckless driving.

(2) Any police constable may apprehend without warrant the driver of any car who commits an offence under this section within his view, if he refuses to give his name and address or produce his

licence on demand, or if the motor car does not bear the mark or marks of identification.

(3) If the driver of any car who commits an offence under this section refuses to give his name or address, or gives a false name or address, he shall be guilty of an offence under this Act, and it shall be the duty of the owner of the car, if required, to give any information which it is within his power to give, and which may lead to the identification and apprehension of the driver, and if the owner fails to do so he also shall be guilty of an offence under this Act.

Registration of
motor cars.

2.—(1) Every motor car shall be registered with the council of a county or county borough, and every such council shall assign a separate number to every car registered with them.

(2) A mark, indicating the registered number of the car and the council with which the car is registered, shall be fixed on the car or on a vehicle drawn by the car, or on both, in such manner as the council require in conformity with regulations of the Local Government Board made under this Act.

(3) A fee of twenty shillings shall be charged by the council of a county or county borough on the registration of a car, except in the case of motor cycles, for which the fee shall be five shillings.

(4) If a car is used on a public highway without being registered, or if the mark to be fixed in accordance with this Act is not so fixed, or if, being so fixed, it is in any way obscured or rendered or allowed to become not easily distinguishable, the person driving the car shall be guilty of an offence under this Act, unless, in the case of a prosecution for obscuring a mark or rendering or allowing it to become not easily distinguishable, he proves that he has taken all steps reasonably practicable to prevent the mark being obscured or rendered not easily distinguishable.

Provided that—

(a) A person shall not be liable to a penalty under this section if he proves that he has had no reasonable opportunity of registering the car in accordance with this section, and that the car is being driven on a highway for the purpose of being so registered; and

(b) The council of any county or county borough, in which the business premises of any manufacturer of or dealer in motor cars are situated, may, on payment of such annual fee, not exceeding three pounds, as the council require, assign to that manufacturer or dealer a general identification mark which may be used for any car on trial after completion, or on trial by an intending purchaser, and a person shall not be liable to a penalty under this section while so using the car, if the mark so assigned is fixed upon the car in the manner required by the council in accordance with regulations of the Local Government Board made under this Act.

3.—(1) A person shall not drive a motor car on a public highway unless he is licensed for the purpose under this section, and a person shall not employ any person who is not so licensed to drive a motor car. Licensing of drivers.

If any person acts in contravention of this provision he shall be guilty of an offence under this Act.

(2) The council of a county or county borough shall grant a licence to drive a motor car to any person applying for it who resides in that county or county borough on payment of a fee of five shillings, unless the applicant is disqualified under the provisions of this Act.

(3) A licence shall remain in force for a period of twelve months from the date on which it is granted, but shall be renewable, and the same provisions shall apply with respect to the renewal of the licence as apply with respect to the grant of the licence.

(4) A licence must be produced by any person driving a motor car when demanded by a police constable. If any person fails so to produce his licence, he shall be liable, on summary conviction, in respect of each offence to a fine not exceeding five pounds.

(5) Any person under the age of seventeen years shall be disqualified for obtaining a licence (except that a licence limited to driving motor cycles may be granted to a person over the age of fourteen years), and any person who already holds a licence shall be disqualified for obtaining another licence while the licence so held by him is in force.

4.—(1) Any court before whom a person is convicted of an offence under this Act, or of any offence in connection with the driving of a motor car, other than a first or second offence, consisting solely of exceeding any limit of speed fixed under this Act— Suspension of licence and disqualification.

(a) may, if the person convicted holds any licence under this Act, suspend that licence for such time as the court thinks fit, and, if the court thinks fit, also declare the person convicted disqualified for obtaining a licence for such further time after the expiration of the licence as the court thinks fit; and

(b) may, if the person convicted does not hold any licence under this Act, declare him disqualified for obtaining a licence for such time as the court thinks fit; and,

(c) if the person convicted holds any licence under this Act, shall cause particulars of the conviction and of any order of the court made under this section to be endorsed upon any licence held by him, and shall also cause a copy of those particulars to be sent to the council by whom any licence so endorsed has been granted.

(2) Any person so convicted, if he holds any licence under this Act, shall produce the licence within a reasonable time for the purposes of endorsement, and if he fails to do so shall be guilty of an offence under this Act.

(3) A licence so suspended by the court shall during the term of suspension be of no effect, and a person whose licence is suspended or who is declared by the court to be disqualified for obtaining a licence shall, during the period of suspension or disqualification, be disqualified for obtaining a licence.

(4) Any person who is by virtue of an order of the court under this section disqualified for obtaining a licence may appeal against the order, in the same manner as a person may appeal who is ordered to be imprisoned without the option of a fine; and the court may, if they think fit, pending the appeal, defer the operation of the order.

(5) If any person, who under the provisions of this Act is disqualified for obtaining a licence, applies for or obtains a licence while he is so disqualified, or if any person whose licence has been endorsed applies for or obtains a licence without giving particulars of the endorsement, that person shall be guilty of an offence under this Act, and any licence so obtained shall be of no effect.

Forgery, &c.
of identifica-
tion mark or
licence.

5. If any person forges or fraudulently alters or uses, or fraudulently lends or allows to be used by any other person, any mark for identifying a car or any licence under this Act he shall be guilty of an offence under this Act.

Duty to stop
in case of
accident.

6. A person driving a motor car shall, in any case, if an accident occurs to any person, whether on foot, on horseback or in a vehicle, or to any horse or vehicle in charge of any person, owing to the presence of the motor car on the road, stop and, if required, give his name and address, and also the name and address of the owner and the registration mark or number of the car; and if any person knowingly acts in contravention of this section, he shall be liable, on summary conviction, in respect of the first offence to a fine not exceeding ten pounds, and in respect of the second offence to a fine not exceeding twenty pounds, and in respect of any subsequent offence to a fine not exceeding twenty pounds, or, in the discretion of the court, to a term of imprisonment not exceeding one month.

Regulations by
Local Govern-
ment Board.
59 & 60 Vict.
c. 36.

7.—(1) The Local Government Board may, under section six of the Locomotives on Highways Act, 1896 (in this Act referred to as the principal Act), make regulations—

(a) providing generally for facilitating the identification of motor cars, and in particular for determining and regulating generally the size, shape and character of the identifying marks to be fixed under this Act and the mode in which they are to be fixed and to be rendered easily distinguishable, whether by night or by day, and with respect to the registration of cars, and the entry of particulars, including particulars of the ownership of the car, in the register, and the giving of those particulars, and for making any particulars contained in the register available for use by the police, and for making the registration of a car void if the regulations as to registration are not complied with; and

(b) with respect to the licences to be granted by the councils of counties or county boroughs under this Act, and in particular with respect to the register to be kept of those licences and the renewal of licences, and for providing special facilities for granting licences to persons not resident in the United Kingdom, and for communicating particulars thereof to adjoining and other county or county borough councils, and for making any particulars with respect to any persons whose licences are suspended or endorsed available for use by the police, and for preventing a person holding more than one licence.

(2) The councils of counties and county boroughs shall comply with any regulations so made by the Local Government Board, and may, if authorised by those regulations and in accordance therewith, charge in respect of the entry of particulars of the ownership of a car on change of ownership such fee, not exceeding ten shillings, as may be prescribed by the regulations, and in respect of the issue of a new licence in the place of a licence lost or defaced such fee not exceeding one shilling as may be prescribed by the regulations.

8. The Local Government Board may, by regulations made under section six of the principal Act, prohibit or restrict the driving of any motor cars, or of any special kind of motor cars, on any specified highway or part of a highway, which does not exceed sixteen feet in width, or on which ordinary motor car traffic would, in their opinion, be especially dangerous.

Power to prohibit motor cars on special roads.

9.—(1) Section four of the principal Act (which relates to the rate of speed of motor cars) is hereby repealed, but a person shall not, under any circumstances, drive a motor car on a public highway at a speed exceeding twenty miles per hour, and, within any limits or place referred to in regulations made by the Local Government Board with a view to the safety of the public, on the application of the local authority of the area in which the limits or place are situate, a person shall not drive a motor car at a speed exceeding ten miles per hour.

Rate of speed.

If any person acts in contravention of this provision he shall be liable, on summary conviction, in respect of the first offence to a fine not exceeding ten pounds, and in respect of the second offence to a fine not exceeding twenty pounds, and in respect of any subsequent offence to a fine not exceeding fifty pounds, but a person shall not be convicted under this provision for exceeding the limit of speed of twenty miles merely on the opinion of one witness as to the rate of speed.

(2) Where a person is prosecuted for an offence under this section, he shall not be convicted unless he is warned of the intended prosecution at the time the offence is committed, or unless notice of the intended prosecution is sent to him or to the owner of the car as entered on the register within such time after the offence is committed, not exceeding twenty-one days, as the court think reasonable.

(3) The Local Government Board may, without any application from the local authority, after considering any objections which may be raised by the local authority, revoke or alter any regulation made by them under this section.

(4) For the purposes of this section the expression local authority means—

- (a) as respects the City of London, the mayor, aldermen and commons of the City of London in common council assembled; and
- (b) as respects a municipal borough with a population of over ten thousand, according to the last census taken before the passing of this Act, the council of the borough; and
- (c) as respects any other area, the county council.

Erection of
notice boards.

10.—(1) Local authorities within the meaning of the last preceding section shall give public notice of any regulation of the Local Government Board, made in pursuance of this Act, prohibiting or restricting the use of motor cars on any highway or part of a highway, or limiting the speed of motor cars within any limits or place, and, for the purpose of giving effect to any such regulation, shall place notices in conspicuous places on or near the highway, part of a highway, limits or place to which the regulation refers.

(2) Subject to regulations as to size and colours to be made by the Local Government Board, local authorities, within the meaning of the last preceding section, shall within their areas cause to be set up sign posts denoting dangerous corners, cross roads and precipitous places, where such sign posts appear to them to be necessary.

Penalties and
legal proceed-
ings.

11.—(1) A person guilty of an offence under this Act, for which no special penalty is provided, shall be liable on summary conviction in respect of each offence to a fine not exceeding twenty pounds, or in the case of a second or subsequent conviction to a fine not exceeding fifty pounds, or in the discretion of the court to imprisonment for a period not exceeding three months.

(2) Any person adjudged to pay a fine exceeding twenty shillings under this Act may appeal against the conviction, in the same manner as he may appeal if ordered to be imprisoned without the option of a fine.

Regulations as
to maximum
weight of cars.

12.—(1) The Local Government Board by regulations made under section six of the principal Act may, as respects any class of vehicle mentioned in the regulations, increase the maximum weights of three tons and four tons mentioned in section one of that Act, subject to any conditions as to the use and construction of the vehicle which may be made by the regulations.

(2) The power of the Local Government Board to make regulations under section six of the Locomotives on Highways Act, 1896, shall, as respects motor cars exceeding two tons in weight unladen, include a power to make regulations as to speed.

Inland Revenue
duties for

13. The definition of "male servant" in subsection three of section nineteen of the Revenue Act, 1869, as amended by section

five of the Customs and Inland Revenue Act, 1876, shall be construed as if a person employed to drive a motor car were included in that definition.

motor car
drivers.
32 & 33 Vict. c. 11.
39 & 40 Vict. c. 16.

14. Subsections one and five of section eighty-seven of the Local Government Act, 1888 (which relates to local inquiries) shall apply for the purpose of the carrying out by the Local Government Board of any of their duties under this Act.

Local inquiries
by Local
Government
Board.
51 & 52 Vict.
c. 41.

15. Nothing in this Act shall affect any liability of the driver or owner of a motor car by virtue of any statute or at common law.

Saving of
liability.

16. It is hereby declared that this Act and the principal Act apply to persons in the public service of the Crown.

Application to
servants of the
Crown.

17.—(1) A motor car shall not be driven on or over Menai Bridge except in accordance with regulations made by the Commissioners of Works.

Protection of
Menai Bridge.

(2) If any person acts in contravention of this section, he shall be liable on summary conviction in respect of the first offence to a fine not exceeding ten pounds, and in respect of the second offence to a fine not exceeding twenty pounds, and in respect of any subsequent offence to a fine not exceeding fifty pounds.

18. In the application of this Act to Scotland—

Application to
Scotland.

(1) a reference to the Secretary for Scotland shall be substituted for a reference to the Local Government Board; and

(2) a reference to the council of a royal, parliamentary or police burgh, containing within its boundaries, as ascertained, fixed or determined for police purposes, a population according to the census for the time being last taken of or exceeding fifty thousand, shall be substituted for a reference to the council of a county borough, and every other burgh shall be deemed to form part of the county within which it is situate; and

(3) the road authority of any county or of any royal, parliamentary or police burgh shall be the local authority within the meaning of the provisions of this Act which relate to the rate of speed and the erection of danger boards; and

(4) a reference to subsections one and three of section ninety-three of the Local Government (Scotland) Act, 1889, shall be substituted for a reference to subsections one and five of section eighty-seven of the Local Government Act, 1888; and

52 & 53 Vict.
c. 50.

(5) any fine under this Act shall be recoverable by imprisonment in terms of the Summary Jurisdiction Acts; and

(6) any person convicted of an offence under this Act and ordered to be imprisoned without the option of a fine or adjudged to pay a fine exceeding ten pounds shall have a right of appeal against the conviction. Such appeal shall

lie to the sheriff depute, and shall be heard summarily. Such appeal may be taken either immediately after the judgment appealed against has been pronounced or within seven days thereafter, and upon such appeal being taken the sentence (if any) shall be suspended until the appeal has been disposed of: Provided that the appellant shall, at the time of taking such appeal, lodge in the hands of the clerk of court a bond with sufficient cautioner, or otherwise give security satisfactory to the court for appearing before the sheriff depute. The sheriff depute is hereby authorised and empowered on such appeal to hear evidence, whether led at the original hearing or not, and to reconsider the merits of the case and reverse or confirm, in whole or in part, the judgment appealed against, or give such new or different judgment as he in his discretion shall think fit; and, save as provided by the Summary Prosecutions Appeals (Scotland) Act, 1875, his judgment shall be final and not subject to review; and

- (7) An appeal, taken in terms of this Act by a person holding a licence, against an order for suspension or disqualification shall be taken and disposed of as nearly as may be in the manner and subject to the conditions provided by the immediately preceding subsection.

App icati on to
Ireland.

19. In the application of this Act to Ireland—

- (1) a reference to the Local Government Board for Ireland shall be substituted for a reference to the Local Government Board; and
- (2) Subsections one and three of article thirty-two of the Local Government (Application of Enactments) Order, 1898, shall be substituted for subsections one and five of section eighty-seven of the Local Government Act, 1888; and
- (3) Section twenty-three of the Summary Jurisdiction (Ireland) Act, 1851 (which gives a right of appeal), shall apply as respects convictions for offences under this Act, as if any term of imprisonment without the option of a fine were substituted for a term of imprisonment exceeding one month; and
- (4) Sections one to four, inclusive, of the Criminal Evidence Act, 1898, shall extend to Ireland in the case of a person charged with any offence under this Act.

51 & 52 Vict.
c. 41.

14 & 15 Vict.
c. 92.

61 & 62 Vict.
c. 36.

Interpretation,
commence-
ment and
short title.

20.—(1) In this Act the expression “motor car” has the same meaning as the expression “light locomotive” has in the principal Act, as amended by this Act, except that, for the purpose of the provisions of this Act with respect to the registration of motor cars, the expression “motor car” shall not include a vehicle drawn by a motor car.

The provisions of this Act and of the principal Act shall apply in the case of a roadway to which the public are granted access, in the same manner as they apply in the case of a public highway.

(2) This Act shall come into operation on the first day of January nineteen hundred and four.

(3) This Act may be cited as the Motor Car Act, 1903; and the Locomotives on Highways Act, 1896, and this Act may be cited together as the Motor Car Acts, 1896 and 1903.

21. This Act shall continue in force till the thirty-first day of December nineteen hundred and six and no longer, unless Parliament shall otherwise determine. Duration of Act.

CHAPTER 37.

An Act to amend the Law relating to the occupation and ownership of Land in Ireland and for other purposes relating thereto and to amend the Labourers (Ireland) Acts. [14th August 1903.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :

PART I.

LAND PURCHASE.

Purchase and Resale of Estates.

1.—(1) In the case of the sale of an estate, whether to the Land Commission or otherwise, when application is made for an advance under the Land Purchase Acts of the whole purchase money of a holding, and the Land Commission are satisfied that the tenant is in occupation of the holding, then, subject to the limitations in the Land Purchase Acts on advances to tenants purchasing their holdings, the Land Commission shall sanction the advance in the following cases, namely :—

Advances for purchase of holdings where whole estate sold.

- (a) In the case of the purchase of a holding subject to a judicial rent fixed or agreed to since the passing of the Act of 1896, if the purchase annuity, created under this Act payable in respect of the advance, will be not less than ten nor more than thirty per cent. below the existing rent ; and
- (b) In the case of the purchase of a holding subject to a judicial rent fixed or agreed to before that date, if the said purchase annuity will be not less than twenty nor more than forty per cent. below that rent :

59 & 60 Vict. c. 47.

Provided that, in the case of a holding subject to a judicial rent fixed or agreed to before the passing of the Act of 1896, the Land Commission may, if they think it equitable and if the purchase agreement so provides, treat the holding, for the purposes